

DEPARTMENT OF VETERANS AFFAIRS

Justification and Approval (J&A)

For

Other Than Full and Open Competition (>SAT)

Acquisition Plan Action ID: 36C259-24-AP-1694

RPOW Tracker No.: FY25 - NCO 19 - 800

1. **Contracting Activity:** Department of Veterans Affairs, Regional Procurement Office West, Network Contracting Office 19, Services 4 Contracting team (6162 S. Willow Drive, Greenwood Village, CO 80111) on behalf of Environmental Service, George E. Wahlen VA Medical Center, also known as the Salt Lake VA or SLVAMC (500 Foothill Blvd, Salt Lake City, UT 84148). It is the intent of the contracting activity to award a short-term contract on a sole source basis. This document sets forth the justification and approval in accordance with FAR Part 13.501, VAAR 813.106-70 and VAAR 819.7007.

2237: 660-25-2-5053-0018

2. **Nature and/or Description of the Action Being Approved:** The SLVAMC has an urgent and ongoing requirement for housekeeping services. The Government intends to award a short-term sole-source contract pursuant to 38 USC § 8127(c) and VAAR 819.7007 to HamHed, LLC located at 410 Wall St. Jeffersonville, IN 47130. The estimated period of performance will be for one (1) four-month base period with zero (0) option periods beginning 02/01/2025 and ending 05/31/2025. The estimated total value of the procurement is \$611,148.00. The resulting contract will include FAR 52.217-8 Option to Extend Services, and if exercised the 52.217-8 option will be exercised at the same rates as those in effect under the contract at such time as the contract is extended.

This is a four (4) month emergency bridge to cover the time between the termination of 36C25924C0042 and the solicitation / award of the new base + 4 requirement.

3. **Description of Supplies/Services Required to Meet the Agency's Needs:** EMS housekeeping services was previously awarded under 36C25924C0042, however due to failure to perform in accordance with the Performance Work Statement, a Stop Work Order was issued to be effective 11:59pm 1/31/2025, and 36C25924C0042 is being terminated. The Salt Lake VA does not have the staff to provide the required housekeeping services on their own, therefore upon termination of the current contract there will be an immediate need to continue housekeeping services on a continual basis to prevent disruption of these critical services for clinics, wards, surgery, and the Fisher House. The resulting contract shall be awarded as a firm fixed price with an Independent Government Estimate (IGE) of \$611,148.00 for this requirement.
4. **Statutory Authority Permitting Other than Full and Open Competition:** 41 USC §3304(a)(5), 38 U.S. Code § 8127(c), as implemented by FAR 6.302-5 (Authorized or Required by Statute). COs may use the non-competitive (sole source) procedures authorized in [VAAR 819.7008 \(DEVIATION\)](#) or [VAAR 819.7009 \(DEVIATION\)](#) up to \$5,000,000. Check the specific VAAR clause used below:

(X) 819.7008 Sole source awards to a certified service-disabled veteran-owned small business.
The contracting officer confirms that:

- i. The anticipated award price of the contract (to include any options) will not exceed the \$5 million dollar threshold.
- ii. HamHed has the capability to provide housekeeping services for Salt Lake VA in its entirety. HamHed has relevant experience providing housekeeping services and has done so for the SLVAMC since 2019. Furthermore, HamHed can provide the requirement in its entirety immediately upon award.
- iii. The contracting officer has determined that award will be made to HamHed at a fair and reasonable price. The contracting officer utilized the pricing under the current contract 36C25924C0042 as well as other procurements of housekeeping services where prices were previously determined to be fair and reasonable to assist in the determination that the pricing for this short-term sole source contract is fair and reasonable.

5. **Demonstration that the Contractor's Unique Qualifications and/or Nature of the Acquisition Requires the Use of the Authority Cited Above (applicability of authority):** Due to failure to perform, a Stop Work Order was issued to Komplete Systems Integrators, Inc. (KOMPSYS) for the EMS housekeeping services for Salt Lake VA to be effective 11:59pm 1/31/2025.

HamHed has confirmed they can provide all services in accordance with the Statement of Work immediately upon award. Any break in service would be catastrophic for the SLCVA and possibly life threatening in regards to Surgery, Cath Lab, Emergency Department and other critical care areas.

To allow reasonable time for the solicitation / award of the new base + 4 requirement and to ensure that there is no interruption in the providing these critical services to the SLCVA, it is the Contracting Officer's intent to sole source housekeeping services in accordance with 38 USC 8127(c) and VAAR 819.7007. It has been determined that HamHed, LLC, the previous incumbent under 36C25924P0527, can provide the requirement in its entirety immediately upon award, without disruption or interruption to the Salt Lake medical facility. HamHed is a VetBiz verified Service-Disable Veteran-Owned Small Business.

VAAR 819.7008 (DEVIATION) and VAAR 819-7009 (DEVIATION) authority allows sole source awards to SDVOSBs based on 38 U.S.C. 8127(c). The CO has determined HamHed, LLC to be a responsible source with respect to performance. Additionally, the CO has verified HamHed, LLC meets eligibility requirements in accordance to VAAR 819.7003 (DEVIATION). The intent to award a short-term sole source contract to HamHed is deemed necessary and essential to support agency's mission to maintain this critical service. The short-term contract is needed to allow reasonable time to solicit and award the new base + 4 requirement.

6. **Description of Efforts Made to ensure that offers are solicited from as many potential sources as deemed practicable, including whether a notice was or will be publicized as required by FAR Subpart 5.2 and, if not, which exception under FAR 5.202 applies:** This justification relates solely to the need of providing emergency housekeeping services for the period of February 1, 2025 through May 31, 2025 to bridge the gap of service until the new requirement can be solicited and a long-term contract awarded.

The contracting officer's determination to make a sole source award is a business decision wholly within the discretion of the contracting officer. This authority is being used judiciously and is in the best interest of the Government. A notice regarding this contract action will not be publicized as it falls under exception in accordance with FAR 5.202(a)(2).

7. **Determination by the CO that the Anticipated Cost to the Government will be Fair and Reasonable:** The contracting officer utilized the pricing under the current contract 36C25924C0042 as well as other procurements of housekeeping services where prices were previously determined to be fair and reasonable to assist in the determination that the pricing for this short-term sole source contract is fair and reasonable.
8. **Description of the Market Research Conducted and the Results, or a Statement of the Reasons Market Research Was Not Conducted:** The contracting officer did conduct market research, however due to the emergency nature of this requirement it is paramount to award a short-term contract while the new base + 4 requirement is being solicited, awarded and transitioned.
9. **Any Other Facts Supporting the Use of Other than Full and Open Competition:** In accordance with authority under 38 U.S.C. 8127(c), Small business concerns owned and controlled by veterans: contracting goals and preferences, (c) sole source contracts for contracts above simplified acquisition threshold – for purposes of meeting the goals under subsection (a), and in accordance with this section, a contracting officer of the Department may award a contract to a small business concerned owned and controlled by veterans using procedures other than competitive procedures if – (1) such concern is determined to be a responsible source with respect to performance of such contract opportunity; (2) the anticipated award price of the contract (including options) will exceed the simplified acquisition threshold (as defined in section 4 of the Office of Federal Procurement Policy Act 41 U.S.C.403) but will not exceed \$5,000,000.00; and (3) in the estimation of the contracting officer, the contract award can be made at a fair and reasonable price that offers best value to the United States.
10. **Listing of Sources that Expressed, in Writing, an Interest in the Acquisition:**

HamHed, LLC
UEI: DVBLNG9UHP65
410 Wall St
Jeffersonville, IN 47130
11. **A Statement of the Actions, if any, the Agency May Take to Remove or Overcome any Barriers to Competition before Making subsequent acquisitions for the supplies or services required:** This follow-on requirement is being conducted as a SDVOSB sole source in accordance with VAAR 819.7008 (DEVIATION) and VAAR 819-7009 (DEVIATION). This requirement is for a base period of four months and no option periods. This requirement is to provide continued housekeeping service during the solicitation and award of a new base + 4 long term contract.
12. **Requirements Certification:** I certify that the requirement outlined in this justification is a Bona Fide Need of the Department of Veterans Affairs and that the supporting data under my cognizance, which are included in the justification, are accurate and complete to the best of my knowledge and belief.

Brian T. Smith
Chief of Environmental Services
George E. Wahlen VA Medical Center

Date

13. Approvals in accordance with the [VHAPM Part 806.3 OFOC SOP](#):

- a. **Contracting Officer or Designee's Certification (required)**: I certify that the foregoing justification is accurate and complete to the best of my knowledge and belief.

Heather Clemons
Contracting Officer
NCO 19, Supply-Services Western Tier

Date

- b. **One Level Above the Contracting Officer**: I certify the justification meets requirements for other than full and open competition.

Timothy J. Myers
Branch Chief
NCO 19, Supply-Services Western Tier

Date